



SPONSOR: Sen. Hoffner & Rep. Bush
Sen. Sokola; Reps. Gorman, Griffith, Morrison,
Ross Levin

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 57

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO POSTCONVICTION REMEDY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 45, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 4504. Postconviction remedy.

(a) ~~Except at a time when direct appellate review is available, and subject to the time limitations set forth in this subsection,~~ At any time, a person convicted of a crime may file in the court that entered the judgment of conviction a motion requesting the performance of forensic DNA testing to demonstrate the person's actual innocence. ~~Any such motion may not be filed more than 3 years after the judgment of conviction is final.~~ The motion ~~may~~ shall be granted if all of the following apply:

(1) The testing is to be performed on evidence secured in relation to the trial which resulted in the ~~conviction;~~ conviction.

(2) The evidence was not previously subject to testing because the technology for testing was not available at the time of the ~~trial;~~ trial or date of entry of a plea, or although the evidence was previously subjected to testing, it can be subjected to additional testing that provides a reasonable likelihood of results that are more probative than the results of the previous test.

(3) The movant presents a prima facie case that identity was ~~an issue in the trial;~~ at issue.

(4) The movant presents a prima facie case that the evidence to be tested has been subject to a chain of custody sufficient to establish that the evidence has not been substituted, tampered with, degraded, contaminated, altered or replaced in any material ~~aspect;~~ aspect.

(5) The requested testing has the scientific potential to produce new, noncumulative evidence materially relevant to the person's assertion of ~~actual innocence;~~ and actual innocence.

(6) The requested testing employs a scientific method which is generally accepted within the relevant scientific community, and which satisfies the pertinent Delaware Rules of Evidence concerning the admission of scientific testimony or evidence.

24 (b) ~~Except at a time when direct appellate review is available, a person~~ A person convicted of a crime who claims
25 that DNA evidence ~~not available at trial~~ establishes the petitioner's actual innocence may commence a proceeding to secure
26 relief by filing a motion for a new trial in the court that entered the judgment of conviction. The court may grant a new trial
27 if the person establishes ~~by clear and convincing evidence~~ by reasonable probability that no reasonable trier of fact,
28 ~~considering the evidence presented at trial, evidence that was available at trial but was not presented or was excluded, and~~
29 ~~the evidence obtained pursuant to subsection (a) of this section~~ would have convicted the person.

30 (c) The court shall impose reasonable conditions on the testing designed to protect the state's interests in the
31 integrity of the evidence and the testing process.

32 (d) Any motion filed pursuant to this section shall be served upon the State. The State shall have an absolute right
33 to appeal to an appellate court any order granting a motion for a new trial pursuant to this section.

34 (e) The cost of DNA testing ordered under subsection (a) of this section shall be borne by the State or the
35 applicant, as the court may order in the interests of justice, if it is shown that the applicant is not indigent and possesses the
36 means to pay.

SYNOPSIS

This Act updates Title 11 of the Delaware Code concerning postconviction remedies relating to DNA testing and DNA evidence.

Specifically, the Act removes the limitations currently in the Delaware Code (1) that a person convicted of a crime must seek DNA testing within 3 years after the conviction is final and (2) that a person convicted of a crime may not seek DNA testing or a new trial based on DNA evidence if direct appellate review is available.

In addition, the Act requires the court to grant a motion for the performance of DNA testing if certain criteria are satisfied. The Act also permits persons who entered a guilty plea, in addition to persons convicted of a crime, to seek DNA testing, and allows for DNA testing where evidence was previously subjected to testing but additional testing of that evidence provides a reasonable likelihood of results that are more probative.

The Act changes the standard applicable to a motion for a new trial based on DNA evidence. Instead of requiring a showing by clear and convincing evidence that no reasonable trier of fact would have convicted the person, under the Act, a reasonable probability that no reasonable trier of fact would have convicted the person must be established.

Finally, the Act makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.

Author: Senator Hoffner